

The Hindu Marriage (Uttar Pradesh Sanshodhan) Adhiniyam, 1962

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State of Uttar Pradesh - Act

The Hindu Marriage (Uttar Pradesh Sanshodhan) Adhiniyam, 1962

UTTAR PRADESH

India

The Hindu Marriage (Uttar Pradesh Sanshodhan) Adhiniyam, 1962

Act 13 of 1962

Published on 1 November 1962

Commenced on 1 November 1962

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The Hindu Marriage (Uttar Pradesh Sanshodhan) Adhiniyam, 1962

(U.P. Act

No. 13 of 1962

)

[Dated 1st November 1962]

Received the assent of the President on November 1, 1962, published in U. P. Gazette, (Extraordinary), dated November 7, 1962.

(As passed by the Uttar Pradesh Legislature)

An Act to amend the Hindu Marriage Act, 1955, in its application to Uttar Pradesh

Whereas it is expedient to amend the Hindu Marriage Act, 1955, in its application to Uttar Pradesh for the purpose of providing for divorce in certain cases of cruelty;

It is hereby enacted in the Thirteenth Year of Republic of India as follows :

1.

Short title and application.

(1)

This Act may be called the Hindu Marriage (Uttar Pradesh Sanshodhan) Adhiniyam, 1962.

(2)

This Act applies to Hindus domiciled in the State of Uttar Pradesh and shall also apply if either of the parties to the marriage was at the time of the marriage a Hindu domiciled in the State of Uttar Pradesh.

2.

Amendment of Section 13 of Act XXV of 1955.

- In sub-section (1) of Section 13 of the Hindu Marriage Act, 1955-

(a)

after clause (i) the following new clause shall be inserted and shall be deemed always to have been inserted:-

(i-a) has persistently or repeatedly treated the petitioner with such cruelty as to cause a reasonable apprehension in the mind of the petitioner that it will be harmful or injurious for the petitioner to live with the other party; or",

(b)

for clause (viii), the following clause shall be substituted and shall be deemed always to have been substituted-

(viii)

has not resumed cohabitation after the passing of a decree for judicial separation against that party and-

(a)

a period of two years has elapsed since the passing of such decree; or

(b)

the case is one of exceptional hardship to the petitioner or of exceptional depravity on the part of the other party; or"

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